

Multiple Choice (10 marks)

1. Is recognition of governments prevalent in contemporary international practice?
 - (a) Recognition of governments is very prevalent in contemporary practice
 - (b) Recognition of governments has largely been replaced by functional Recognition
 - (c) Government recognition is common in respect of rebel entities
 - (d) Only democratic governments are recognised in contemporary practice
2. Hart's analysis of law distinguishes between
 - (a) Cause and effect
 - (b) Theory and fact
 - (c) Being obliged and having an obligation
 - (d) Corporeal and incorporeal rights
3. The U.S. Congress is empowered by the Commerce Clause and other provisions of the U.S. Constitution to enact _____ to regulate foreign and interstate commerce.
 - (a) ordinances
 - (b) federal statutes
 - (c) executive orders
 - (d) charters
4. Point out the most accurate response : According to Austin, law has the following attributes :
 - (a) Command, sovereign and enforceability
 - (b) Command, sovereign and legal remedy
 - (c) Command, sovereign and sanction
 - (d) Command, sovereign and obedience by subject
5. Which case was the first to define the meaning of the doctrine of 'margin of appreciation' as applied by the European Court of Human Rights?
 - (a) Goodwin v UK (2002)
 - (b) Airey v Ireland (1979)
 - (c) Osman v UK (1998)
 - (d) Handyside v UK (1976)

True / False (10 marks)

Answer True or False

6. True or False: The rule of recognition confers power to judges while also imposing duties to decide cases within the legal system.
7. True or False: The phrase suggests that all laws must prioritize legal formalities over ethical considerations.
8. True or False: Hart's distinction primarily refutes the idea that law and morality are inherently connected in legal systems.
9. True or False: Immunity shields States from being sued in the courts of other States, preserving their sovereignty and dignity.
10. True or False: The Social Fact Thesis asserts that law is fundamentally an artefact or social construction shaped by societal norms.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss Hobbes' assertion that peace is the first law of nature, analyzing its implications for individual rights and societal order in the context of constitutional law.
12. Discuss the implications of Maine's aphorism that 'the movement of progressive societies has hitherto been a movement from Status to Contract' and analyze how its misinterpretation as a prediction affects our understanding of societal progress.

End of Paper